



Bill Number: H.B. 2415

Bolick Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Zack Dean

FLOOR AMENDMENT EXPLANATION

1. Prohibits a kratom product retailer from selling any kratom products within 500 feet of a public or private school, a child care facility or a facility that provides pre-school programs.
2. Requires kratom product retailers to keep all kratom products behind the sales counter.
3. Repeals all statutes that permit the sale and regulation of kratom products if the U.S. Drug Enforcement Administration schedules kratom, mitragynine or any substance derived from the mitragyna speciosa plant as a controlled substance on or before January 1, 2037.
4. Requires the Director of the Arizona State Board of Pharmacy to notify the Director of Legislative Council if this condition is met or not met.
5. Adopts advertising restrictions for kratom products similar to those in place for adult-use marijuana, including:
 - a) a prohibition against advertising with images or visual representations of the consumption of kratom or kratom products;
 - b) a prohibition against advertising at, on or within public airports, public transportation shelters or public buses, trains, shuttles or trams;
 - c) a prohibition against advertising electronically, via social media or on a website, unless at least 73.6 percent of the audience is expected to be at least 21 years old;
 - d) a prohibition against sponsoring any sporting event unless at least 73.6 percent of the audience is expected to be at least 21 years old, or unless the organization provides written approval and the sponsorship acknowledgement adheres to additional requirements;
 - e) a requirement that all kratom product advertising contain a conspicuous and legible warning against the use of kratom products if the person is under 21 or pregnant, with specified background and font requirements;
 - f) a prohibition against billboard advertisements within 1,000 radial feet of any child care center, church, substance abuse recovery facility, public park, public playground or public or private school; and
 - g) a requirement that any advertising must accurately and legibly identify the entity responsible for the content of the advertising.
6. Specifies that a person has 30 days after notification from the Attorney General's office to remedy a violation of billboard advertising requirements, except that an advertisement must be removed as soon as safely and legally practicable if circumstances beyond the billboard operator's control prevent the removal within 30 days.
7. Specifies that individuals or entities that fail to comply with billboard requirements are subject to civil penalties and disciplinary action as specified.

Amendment explanation prepared by Zack Dean

04/20/2026

BOLICK FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2415
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3401, Arizona Revised Statutes, is amended to
3 read:

4 13-3401. Definitions

5 In this chapter, unless the context otherwise requires:

6 1. "Administer" means to apply, inject or facilitate the inhalation
7 or ingestion of a substance to the body of a person.

8 2. "Amidone" means any substance identified chemically as
9 (4-4-diphenyl-6-dimethylamine-heptanone-3), or any salt of such substance,
10 by whatever trade name designated.

11 3. "Board" means the Arizona state board of pharmacy.

12 4. "Cannabis" means the following substances under whatever names
13 they may be designated:

14 (a) The resin extracted from any part of a plant of the genus
15 cannabis, and every compound, manufacture, salt, derivative, mixture or
16 preparation of such plant, its seeds or its resin. Cannabis does not
17 include oil or cake made from the seeds of such plant, any fiber,
18 compound, manufacture, salt, derivative, mixture or preparation of the
19 mature stalks of such plant except the resin extracted from the stalks or
20 any fiber, oil or cake or the sterilized seed of such plant which is
21 incapable of germination.

22 (b) Every compound, manufacture, salt, derivative, mixture or
23 preparation of such resin or tetrahydrocannabinol.

24 5. "Coca leaves" means cocaine, its optical isomers and any
25 compound, manufacture, salt, derivative, mixture or preparation of coca
26 leaves, except derivatives of coca leaves which do not contain cocaine,
27 ecgonine or substances from which cocaine or ecgonine may be synthesized
28 or made.

- 1 6. "Dangerous drug" means the following by whatever official,
2 common, usual, chemical or trade name designated:
- 3 (a) Any material, compound, mixture or preparation that contains
4 any quantity of the following hallucinogenic substances and their salts,
5 isomers, whether optical, positional or geometric, and salts of isomers,
6 unless specifically excepted, whenever the existence of such salts,
7 isomers and salts of isomers is possible within the specific chemical
8 designation:
- 9 (i) Alpha-ethyltryptamine.
10 (ii) Alpha-methyltryptamine.
11 (iii) (2-aminopropyl) benzofuran (APB).
12 (iv) (2-aminopropyl)-2, 3-dihydrobenzofuran (APDB).
13 (v) Aminorex.
14 (vi) 4-bromo-2, 5-dimethoxyphenethylamine.
15 (vii) 4-bromo-2, 5-dimethoxyamphetamine.
16 (viii) Bufotenine.
17 (ix) [3-(3-carbamoylphenyl)phenyl]N-cyclohexyl carbamate (URB-597).
18 (x) Diethyltryptamine.
19 (xi) 2, 5-dimethoxyamphetamine.
20 (xii) Dimethyltryptamine.
21 (xiii) (2-ethylaminopropyl)-benzofuran (EAPB).
22 (xiv) 5-methoxy-alpha-methyltryptamine.
23 (xv) 5-methoxy-3, 4-methylenedioxyamphetamine.
24 (xvi) 4-methyl-2, 5-dimethoxyamphetamine.
25 (xvii) (2-methylaminopropyl)-benzofuran (MAPB).
26 (xviii) Ibogaine.
27 (xix) Lysergic acid amide.
28 (xx) Lysergic acid diethylamide.
29 (xxi) Mescaline.
30 (xxii) 4-methoxyamphetamine.
31 (xxiii) Methoxymethylenedioxyamphetamine (MMDA).
32 (xxiv) Methylenedioxyamphetamine (MDA).
33 (xxv) 3, 4-methylenedioxymethamphetamine.
34 (xxvi) 3, 4-methylenedioxy-N-ethylamphetamine.
35 (xxvii) N-ethyl-3-piperidyl benzilate (JB-318).
36 (xxviii) N-hydroxy-3, 4-methylenedioxyamphetamine.
37 (xxix) N-methyl-3-piperidyl benzilate (JB-336).
38 (xxx) N-methyltryptamine mimetic substances that are any substances
39 derived from N-methyltryptamine by any substitution at the nitrogen, any
40 substitution at the indole ring, any substitution at the alpha carbon, any
41 substitution at the beta carbon or any combination of the above.
42 N-methyltryptamine mimetic substances do not include melatonin
43 (5-methoxy n-acetyltryptamine). Substances in the N-methyltryptamine
44 generic definition include AcO-DMT, Baeocystine, Bromo-DALT, DiPT, DMT,
45 DPT, HO-DET, HO-DiPT, HO-DMT, HO-DPT, HO-MET, MeO-DALT, MeO-DET, MeO-DiPT,
46 MeO-DMT, MeO-DPT, MeO-NMT, MET, NMT and Norbufotenin.
47 (xxxi) N-(1-phenylcyclohexyl) ethylamine (PCE).

- 1 (xxxii) Nabilone.
- 2 (xxxiii) 1-(1-phenylcyclohexyl) pyrrolidine (PHP).
- 3 (xxxiv) 1-(1-(2-thienyl)-cyclohexyl) piperidine (TCP).
- 4 (xxxv) 1-(1-(2-thienyl)-cyclohexyl) pyrrolidine.
- 5 (xxxvi) Para-methoxyamphetamine (PMA).
- 6 (xxxvii) Psilacetin.
- 7 (xxxviii) Psilocybin.
- 8 (xxxix) Psilocyn.
- 9 (xl) Synhexyl.
- 10 (xli) Trifluoromethylphenylpiperazine (TFMPP).
- 11 (xlii) Trimethoxyamphetamine (TMA).
- 12 (xliii) 1-pentyl-3-(naphthoyl)indole (JWH-018 and isomers).
- 13 (xliv) 1-butyl-3-(naphthoyl)indole (JWH-073 and isomers).
- 14 (xlv) 1-hexyl-3-(naphthoyl)indole (JWH-019 and isomers).
- 15 (xlvi) 1-pentyl-3-(4-chloro naphthoyl)indole (JWH-398 and isomers).
- 16 (xlvii) 1-(2-(4-(morpholinyl)ethyl))-3-(naphthoyl)indole (JWH-200
- 17 and isomers).
- 18 (xlviii) 1-pentyl-3-(methoxyphenylacetyl)indole (JWH-250 and
- 19 isomers).
- 20 (xlix) (2-methyl-1-propyl-1H-indol-3-yl)-1-naphthalenyl-methanone
- 21 (JWH-015 and isomers).
- 22 (l) (6AR, 10AR)-9-(hydroxymethyl)-6,6-dimethyl-3-(2-methyloctan-2-yl)
- 23 -6a,7,10,10a-tetrahydrobenzo[c]chromen-1-ol) (HU-210).
- 24 (li) 5-(1,1-dimethylheptyl)-2-(3-hydroxycyclohexyl)-phenol
- 25 (CP 47,497 and isomers).
- 26 (lii) 5-(1,1-dimethyloctyl)-2-(3-hydroxycyclohexyl)-phenol
- 27 (cannabicyclohexanol, CP-47,497 C8 homologue and isomers).
- 28 (liii) Xylazine.
- 29 (b) Any material, compound, mixture or preparation that contains
- 30 any quantity of cannabimimetic substances and their salts, isomers,
- 31 whether optical, positional or geometric, and salts of isomers, unless
- 32 specifically excepted, whenever the existence of such salts, isomers and
- 33 salts of isomers is possible within the specific chemical designation.
- 34 For the purposes of this subdivision, "cannabimimetic substances" means
- 35 any substances within the following structural classes:
- 36 (i) 2-(3-hydroxycyclohexyl)phenol with substitution at the
- 37 5-position of the phenolic ring by alkyl or alkenyl, whether or not
- 38 substituted on the cyclohexyl ring to any extent. Substances in the
- 39 2-(3-hydroxycyclohexyl)phenol generic definition include CP-47,497,
- 40 CP-47,497 C8-Homolog, CP-55,940 and CP-56,667.
- 41 (ii) 3-(naphthoyl)indole or 3-(naphthylmethane)indole by
- 42 substitution at the nitrogen atom of the indole ring, whether or not
- 43 further substituted on the indole ring to any extent, whether or not
- 44 substituted on the naphthoyl or naphthyl ring to any extent. Substances
- 45 in the 3-(naphthoyl)indole generic definition include AM-678, AM-2201,
- 46 JWH-004, JWH-007, JWH-009, JWH-015, JWH-016, JWH-018, JWH-019, JWH-020,
- 47 JWH-046, JWH-047, JWH-048, JWH-049, JWH-050, JWH-070, JWH-071, JWH-072,

1 JWH-073, JWH-076, JWH-079, JWH-080, JWH-081, JWH-082, JWH-094, JWH-096,
2 JWH-098, JWH-116, JWH-120, JWH-122, JWH-148, JWH-149, JWH-175, JWH-180,
3 JWH-181, JWH-182, JWH-184, JWH-185, JWH-189, JWH-192, JWH-193, JWH-194,
4 JWH-195, JWH-196, JWH-197, JWH-199, JWH-200, JWH-210, JWH-211, JWH-212,
5 JWH-213, JWH-234, JWH-235, JWH-236, JWH-239, JWH-240, JWH-241, JWH-242,
6 JWH-262, JWH-386, JWH-387, JWH-394, JWH-395, JWH-397, JWH-398, JWH-399,
7 JWH-400, JWH-412, JWH-413, JWH-414 and JWH-415.

8 (iii) 3-naphthoyl-indazole or 3-(naphthylmethane)-indazole by
9 substitution at one or both of the nitrogen atoms of the indazole ring,
10 whether or not further substituted on the indazole ring to any extent,
11 whether or not substituted on the naphthoyl ring to any extent. Substances
12 in the 3-naphthoyl-indazole or 3-(naphthylmethane)-indazole generic
13 definition include THJ2201 and THJ-018.

14 (iv) 3-(naphthoyl)pyrrole by substitution at the nitrogen atom of
15 the pyrrole ring, whether or not further substituted in the pyrrole ring
16 to any extent, whether or not substituted on the naphthoyl ring to any
17 extent. Substances in the 3-(naphthoyl)pyrrole generic definition include
18 JWH-030, JWH-145, JWH-146, JWH-147, JWH-150, JWH-156, JWH-243, JWH-244,
19 JWH-245, JWH-246, JWH-292, JWH-293, JWH-307, JWH-308, JWH-346, JWH-348,
20 JWH-363, JWH-364, JWH-365, JWH-367, JWH-368, JWH-369, JWH-370, JWH-371,
21 JWH-373 and JWH-392.

22 (v) 1-(naphthylmethylene)indene by substitution of the 3-position
23 of the indene ring, whether or not further substituted in the indene ring
24 to any extent, whether or not substituted on the naphthyl ring to any
25 extent. Substances in the 1-(naphthylmethylene)indene generic definition
26 include JWH-176.

27 (vi) 3-(phenylacetyl)indole or 3-(benzoyl)indole by substitution at
28 the nitrogen atom of the indole ring, whether or not further substituted
29 in the indole ring to any extent, whether or not substituted on the phenyl
30 ring to any extent. Substances in the 3-(phenylacetyl)indole generic
31 definition include AM-694, AM-2233, JWH-167, JWH-201, JWH-202, JWH-203,
32 JWH-204, JWH-205, JWH-206, JWH-207, JWH-208, JWH-209, JWH-237, JWH-248,
33 JWH-250, JWH-251, JWH-253, JWH-302, JWH-303, JWH-304, JWH-305, JWH-306,
34 JWH-311, JWH-312, JWH-313, JWH-314, JWH-315, JWH-316, RCS-4, RCS-8, SR-18
35 and SR-19.

36 (vii) 3-(cyclopropylmethanone) indole or 3-(cyclobutylmethanone)
37 indole or 3-(cyclopentylmethanone) indole by substitution at the nitrogen
38 atom of the indole ring, whether or not further substituted in the indole
39 ring to any extent, whether or not substituted on the cyclopropyl,
40 cyclobutyl or cyclopentyl rings to any extent. Substances in the
41 3-(cyclopropylmethanone) indole generic definition include UR-144,
42 fluoro-UR-144 and XLR-11.

43 (viii) 3-adamantoylindole with substitution at the nitrogen atom of
44 the indole ring, whether or not further substituted on the indole ring to
45 any extent, whether or not substituted on the adamantyl ring to any
46 extent. Substances in the 3-adamantoylindole generic definition include
47 AB-001.

1 (ix) N-(adamantyl)-indole-3-carboxamide with substitution at the
2 nitrogen atom of the indole ring, whether or not further substituted on
3 the indole ring to any extent, whether or not substituted on the adamantyl
4 ring to any extent. Substances in the N-(adamantyl)-indole-3-carboxamide
5 generic definition include SDB-001.

6 (x) Indole-3-carboxamide or indazole-3-carboxamide with
7 substitution at the nitrogen atom of the indole ring or by substitution at
8 one or both of the nitrogen atoms of the indazole ring, whether or not
9 further substituted on the indole ring or the indazole ring to any extent,
10 whether or not substituted on the nitrogen of the carboxamide to any
11 extent. Substances in the indole-3-carboxamide or indazole-3-carboxamide
12 generic definition include AKB-48, fluoro-AKB-48, APINACA, AB-PINACA,
13 AB-FUBINACA, ABICA and ADBICA.

14 (xi) 8-Quinolinylnyl-indole-3-carboxylate or 8-quinolinylnyl-indazole-3-
15 carboxylate by substitution at the nitrogen atom of the indole ring or by
16 substitution at one or both of the nitrogen atoms of the indazole ring,
17 whether or not further substituted in the indole ring or indazole ring to
18 any extent, whether or not substituted on the quinoline ring to any
19 extent. Substances in the 8-quinolinylnyl-indole-3-carboxylate or the
20 8-quinolinylnyl-indazole-3-carboxylate generic definition include PB-22,
21 fluoro-PB-22, NPB-22 and fluoro-NPB-22.

22 (xii) Naphthalenyl-indole-3-carboxylate or naphthalenyl-indazole-3-
23 carboxylate by substitution at the nitrogen atom of the indole ring or by
24 substitution at one or both of the nitrogen atoms of the indazole ring,
25 whether or not further substituted in the indole or indazole ring to any
26 extent, whether or not substituted on the naphthalenyl ring to any extent.
27 Substances in the naphthalenyl-indole-3-carboxylate or
28 naphthalenyl-indazole-3-carboxylate generic definition include NM2201,
29 FDU-PB-22, SDB-005 and fluoro SDB-005.

30 (c) Any material, compound, mixture or preparation that contains
31 any quantity of the following substances and their salts, isomers, whether
32 optical, positional or geometric, and salts of isomers having a potential
33 for abuse associated with a stimulant effect on the central nervous
34 system:

35 (i) Alpha-pyrrolidinobutiophenone (Alpha-PBP).

36 (ii) Alpha-pyrrolidinopropiophenone (Alpha-PPP).

37 (iii) Alpha-pyrrolidinovalerophenone (Alpha-PVP).

38 (iv) Alpha-pyrrolidinovalerothiophenone (Alpha-PVT).

39 (v) Aminoindane mimetic substances that are derived from
40 aminoindane by any substitution at the indane ring, replacement of the
41 amino group with another N group or any combination of the above.
42 Substances in the aminoindane generic definition include MDAI, MMAI, IAI
43 and AMMI.

44 (vi) Amphetamine.

45 (vii) Benzphetamine.

46 (viii) Benzylpiperazine (BZP).

47 (ix) Beta-keto-n-methylbenzodioxolylbutanamine (Butylone).

- 1 (x) Beta-keto-n-methylbenzodioxolylpentanamine (Pentylone).
- 2 (xi) Butorphanol.
- 3 (xii) Cathine ((+)-norpseudoephedrine).
- 4 (xiii) Cathinomimetic substances that are any substances derived
- 5 from cathinone, (2-amino-1-phenyl-1-propanone) by any substitution at the
- 6 phenyl ring, any substitution at the 3 position, any substitution at the
- 7 nitrogen atom or any combination of the above substitutions.
- 8 (xiv) Cathinone.
- 9 (xv) 2-(4-Chloro-2,5-dimethoxyphenyl)ethanamine (2C-C).
- 10 (xvi) Chlorphentermine.
- 11 (xvii) Clortermine.
- 12 (xviii) Diethylpropion.
- 13 (xix) Dihydro-5H-indeno-(5,6-d)-1,3-dioxol-6-amine) (MDAI).
- 14 (xx) 2-(2,5-Dimethoxy-4-ethylphenyl)ethanamine (2C-E).
- 15 (xxi) 2-(2,5-Dimethoxy-4-methylphenyl)ethanamine (2C-D).
- 16 (xxii) 2-(2,5-Dimethoxy-4-nitro-phenyl)ethanamine (2C-N).
- 17 (xxiii) 2-(2,5-Dimethoxy-4-(n)-propylphenyl)ethanamine (2C-P).
- 18 (xxiv) 2-(2,5-Dimethoxyphenyl)ethanamine (2C-H).
- 19 (xxv) Dimethylcathinone (Metamfepramone).
- 20 (xxvi) Ethcathinone.
- 21 (xxvii) 2-[4-(Ethylthio)-2,5-dimethoxyphenyl]ethanamine (2C-T-2).
- 22 (xxviii) Fencamfamin.
- 23 (xxix) Fenethylline.
- 24 (xxx) Fenproporex.
- 25 (xxxi) Fluoroamphetamine.
- 26 (xxxii) Fluoromethamphetamine.
- 27 (xxxiii) Fluoromethcathinone.
- 28 (xxxiv) 2-(4-Iodo-2,5-dimethoxyphenyl)ethanamine (2C-I).
- 29 (xxxv) 2-[4-(Isopropylthio)-2,5-dimethoxyphenyl]ethanamine(2C-T-4).
- 30 (xxxvi) Mazindol.
- 31 (xxxvii) Mefenorex.
- 32 (xxxviii) Methamphetamine.
- 33 (xxxix) Methcathinone.
- 34 (xl) Methiopropamine.
- 35 (xli) Methoxy-alpha-pyrrolidinopropiophenone (MOPPP).
- 36 (xlii) Methoxymethcathinone (methedrone).
- 37 (xliii) Methoxyphenethylamine mimetic substances that are any
- 38 substances derived from 2, 5-dimethoxy-phenethylamine by any substitution
- 39 at the phenyl ring, any substitution at the nitrogen atom, any
- 40 substitutions at the carbon atoms of the ethylamine, or any combination of
- 41 the above substitutions.
- 42 (xliv) 4-methylaminorex.
- 43 (xlv) Methyl-a-pyrrolidinobutiophenone (MPBP).
- 44 (xlvi) Methylenedioxy-alpha-pyrrolidinopropiophenone (MDPPP).
- 45 (xlvii) Methylenedioxyethcathinone (Ethylone).
- 46 (xlviii) Methylenedioxymethcathinone (Methylone).
- 47 (xlix) Methylenedioxypyrovalerone (MDPV).

- 1 (l) Methylmethcathinone (Mephedrone).
- 2 (li) Methylphenidate.
- 3 (lii) Modafinil.
- 4 (liii) Naphthylpyrovalerone (Naphyrone).
- 5 (liv) N-ethylamphetamine.
- 6 (lv) N, N-dimethylamphetamine.
- 7 (lvi) Pemoline.
- 8 (lvii) Phendimetrazine.
- 9 (lviii) Phenmetrazine.
- 10 (lix) Phentermine.
- 11 (lx) Pipradol.
- 12 (lxi) Propylhexedrine.
- 13 (lxii) Pyrovalerone.
- 14 (lxiii) Sibutramine.
- 15 (lxiv) Spa ((-)-1-dimethylamino-1,2-diphenylethane).
- 16 (d) Any material, compound, mixture or preparation that contains
- 17 any quantity of the following substances having a potential for abuse
- 18 associated with a depressant effect on the central nervous system:
- 19 (i) Any substance which contains any quantity of a derivative of
- 20 barbituric acid, or any salt of a derivative of barbituric acid, unless
- 21 specifically excepted.
- 22 (ii) Alprazolam.
- 23 (iii) Bromazepam.
- 24 (iv) Camazepam.
- 25 (v) Carisoprodol.
- 26 (vi) Chloral betaine.
- 27 (vii) Chloral hydrate.
- 28 (viii) Chlordiazepoxide.
- 29 (ix) Chlorhexadol.
- 30 (x) Clobazam.
- 31 (xi) Clonazepam.
- 32 (xii) Clorazepate.
- 33 (xiii) Clotiazepam.
- 34 (xiv) Cloxazolam.
- 35 (xv) Delorazepam.
- 36 (xvi) Diazepam.
- 37 (xvii) Dichloralphenazone.
- 38 (xviii) Estazolam.
- 39 (xix) Ethchlorvynol.
- 40 (xx) Ethinamate.
- 41 (xxi) Ethyl loflazepate.
- 42 (xxii) Etizolam.
- 43 (xxiii) Fenfluramine.
- 44 (xxiv) Fludiazepam.
- 45 (xxv) Flunitrazepam.
- 46 (xxvi) Flurazepam.
- 47 (xxvii) Gamma hydroxy butyrate.

Senate Amendments to H.B. 2415

- 1 (xxviii) Glutethimide.
- 2 (xxix) Halazepam.
- 3 (xxx) Haloxazolam.
- 4 (xxxi) Hydroxyphencyclidine (HO-PCP).
- 5 (xxxii) Ketamine.
- 6 (xxxiii) Ketazolam.
- 7 (xxxiv) Loprazolam.
- 8 (xxxv) Lorazepam.
- 9 (xxxvi) Lormetazepam.
- 10 (xxxvii) Lysergic acid.
- 11 (xxxviii) Mebutamate.
- 12 (xxxix) Mecloqualone.
- 13 (xl) Medazepam.
- 14 (xli) Meprobamate.
- 15 (xlii) Methaqualone.
- 16 (xliii) Methohexital.
- 17 (xliv) 2-(methoxyphenyl)-2-(ethylamino)cyclohexanone
- 18 (Methoxetamine).
- 19 (xlv) 2-(methoxyphenyl)-2-(methylamino)cyclohexanone
- 20 (Methoxyketamine).
- 21 (xlvi) Methoxyphencyclidine(MeO-PCP).
- 22 (xlvii) Methypylon.
- 23 (xlviii) Midazolam.
- 24 (xlix) Nimetazepam.
- 25 (l) Nitrazepam.
- 26 (li) Nordiazepam.
- 27 (lii) Oxazepam.
- 28 (liii) Oxazolam.
- 29 (liv) Paraldehyde.
- 30 (lv) Petrichloral.
- 31 (lvi) Phencyclidine (PCP).
- 32 (lvii) Phencyclidine mimetic substances that are any substances
- 33 derived from phenylcyclohexylpiperidine by any substitution at the phenyl
- 34 ring, any substitution at the piperidine ring, any substitution at the
- 35 cyclohexyl ring, any replacement of the phenyl ring or any combination of
- 36 the above. Substances in the phenylcyclohexylpiperidine generic
- 37 definition include Amino-PCP, BCP, Bromo-PCP, BTCP, Chloro-PCP,
- 38 Fluoro-PCP, HO-PCP, MeO-PCP, Methyl-PCP, Nitro-PCP, Oxo-PCP, PCE, PCM,
- 39 PCPY, TCP and TCPY.
- 40 (lviii) Pinazepam.
- 41 (lix) Prazepam.
- 42 (lx) Scopolamine.
- 43 (lxi) Sulfondiethylmethane.
- 44 (lxii) Sulfonethylmethane.
- 45 (lxiii) Sulfonmethane.
- 46 (lxiv) Quazepam.
- 47 (lxv) Temazepam.

- 1 (lxvi) Tetrazepam.
2 (lxvii) Tiletamine.
3 (lxviii) Triazolam.
4 (lxix) Zaleplon.
5 (lxx) Zolazepam.
6 (lxxi) Zolpidem.
7 (lxxii) Zopiclone.
8 (e) Any material, compound, mixture or preparation that contains
9 any quantity of the following anabolic steroids and their salts, isomers
10 or esters:
11 (i) Boldenone.
12 (ii) Clostebol (4-chlorotestosterone).
13 (iii) Dehydrochloromethyltestosterone.
14 (iv) Drostanolone.
15 (v) Ethylestrenol.
16 (vi) Fluoxymesterone.
17 (vii) Formebolone (formebolone).
18 (viii) Mesterolone.
19 (ix) Methandriol.
20 (x) Methandrostenolone (methandienone).
21 (xi) Methenolone.
22 (xii) Methyltestosterone.
23 (xiii) Mibolerone.
24 (xiv) Nandrolone.
25 (xv) Norethandrolon.
26 (xvi) Oxandrolone.
27 (xvii) Oxymesterone.
28 (xviii) Oxymetholone.
29 (xix) Stanolone (4-dihydrotestosterone).
30 (xx) Stanozolol.
31 (xxi) Testolactone.
32 (xxii) Testosterone.
33 (xxiii) Trenbolone.
34 7. "Deliver" means the actual, constructive or attempted exchange
35 from one person to another, whether or not there is an agency
36 relationship.
37 8. "Director" means the director of the department of health
38 services.
39 9. "Dispense" means distribute, leave with, give away, dispose of
40 or deliver.
41 10. "Drug court program" means a program that is established
42 pursuant to section 13-3422 by the presiding judge of the superior court
43 in cooperation with the county attorney in a county for the purpose of
44 prosecuting, adjudicating and treating drug dependent persons who meet the
45 criteria and guidelines for entry into the program that are developed and
46 agreed on by the presiding judge and the prosecutor.

1 11. "Drug dependent person" means a person who is using a substance
2 that is listed in paragraph 6, 19, 20, 21 or 28 of this section and who is
3 in a state of psychological or physical dependence, or both, arising from
4 the use of that substance.

5 12. "Federal act" has the same meaning prescribed in section
6 32-1901.

7 13. "Isoamidone" means any substance identified chemically as
8 (4-4-diphenyl-5-methyl-6-dimethylaminohexanone-3), or any salt of such
9 substance, by whatever trade name designated.

10 14. "Isonipecaïne" means any substance identified chemically as
11 (1-methyl-4-phenyl-piperidine-4-carboxylic acid ethyl ester), or any salt
12 of such substance, by whatever trade name designated.

13 15. "Ketobemidone" means any substance identified chemically as
14 (4-(3-hydroxyphenyl)-1-methyl-4-piperidylethyl ketone hydrochloride), or
15 any salt of such substance, by whatever trade name designated.

16 16. "Licensed" or "permitted" means authorized by the laws of this
17 state to do certain things.

18 17. "Manufacture" means produce, prepare, propagate, compound, mix
19 or process, directly or indirectly, by extraction from substances of
20 natural origin or independently by means of chemical synthesis, or by a
21 combination of extraction and chemical synthesis. Manufacture includes
22 any packaging or repackaging or labeling or relabeling of containers.
23 Manufacture does not include any producing, preparing, propagating,
24 compounding, mixing, processing, packaging or labeling done in conformity
25 with applicable state and local laws and rules by a licensed practitioner
26 incident to and in the course of his licensed practice.

27 18. "Manufacturer" means a person who manufactures a narcotic or
28 dangerous drug or other substance controlled by this chapter.

29 19. "Marijuana" means all parts of any plant of the genus cannabis,
30 from which the resin has not been extracted, whether growing or not, and
31 the seeds of such plant. Marijuana does not include the mature stalks of
32 such plant or the sterilized seed of such plant which is incapable of
33 germination.

34 20. "Narcotic drugs" means the following, whether of natural or
35 synthetic origin and any substance neither chemically nor physically
36 distinguishable from them:

- 37 (a) Acetyl-alpha-methylfentanyl.
- 38 (b) Acetylmethadol.
- 39 (c) Alfentanil.
- 40 (d) Allylprodine.
- 41 (e) Alphacetylmethadol.
- 42 (f) Alphameprodine.
- 43 (g) Alphamethadol.
- 44 (h) Alpha-methylfentanyl.
- 45 (i) Alpha-methylthiofentanyl.
- 46 (j) Alphaprodine.
- 47 (k) Amidone (methadone).

Senate Amendments to H.B. 2415

- 1 (l) Anileridine.
- 2 (m) Benzethidine.
- 3 (n) Benzylfentanyl.
- 4 (o) Betacetylmethadol.
- 5 (p) Beta-hydroxyfentanyl.
- 6 (q) Beta-hydroxy-3-methylfentanyl.
- 7 (r) Betameprodine.
- 8 (s) Betamethadol.
- 9 (t) Betaprodine.
- 10 (u) Bezitramide.
- 11 (v) Buprenorphine and its salts.
- 12 (w) Butonitazene.
- 13 (x) Cannabis.
- 14 (y) Carfentanil.
- 15 (z) 4-chloro-n-[-1-[2-(4-nitrophenyl)ethyl]-2-piperidinylidene]benz
- 16 enesulfonamide (W-18).
- 17 (aa) 4-chloro-n-[1-(2-phenylethyl)-2-piperidinylidene]
- 18 benzenesulfonamide (W-15).
- 19 (bb) Clonitazene.
- 20 (cc) Coca leaves.
- 21 (dd) 1-cyclohexyl-4-(1,2-diphenylethyl)piperazine (MT-45).
- 22 (ee) Dextromoramide.
- 23 (ff) Dextropropoxyphene.
- 24 (gg) Diampromide.
- 25 (hh) 3,4-dichloro-n-(-[1-(dimethylamino)cyclohexyl]methyl)-benzamid
- 26 e (AH-7921).
- 27 (ii) 3,4-dichloro-n-[2-(dimethylamino)cyclohexyl]-N-methylbenzamide
- 28 (U-47700).
- 29 (jj) Diethylthiambutene.
- 30 (kk) Difenoazin.
- 31 (ll) Dihydrocodeine.
- 32 (mm) Dimenoxadol.
- 33 (nn) Dimepheptanol.
- 34 (oo) Dimethylthiambutene.
- 35 (pp) Dioxaphetyl butyrate.
- 36 (qq) Diphenidine (DEP).
- 37 (rr) Diphenoxylate.
- 38 (ss) Dipipanone.
- 39 (tt) Ephedrine.
- 40 (uu) Ethylmethylthiambutene.
- 41 (vv) Etodesnitazene.
- 42 (ww) Etonitazene.
- 43 (xx) Etonitazepyne.
- 44 (yy) Etoxadine.
- 45 (zz) Fentanyl.
- 46 (aaa) Fentanyl mimetic substances that are any substances derived
- 47 from fentanyl by any substitution in the phenethyl group, any substitution

1 in the piperidine ring, any substitution in the aniline ring, any
2 replacement of the phenyl portion of the phenethyl group, any replacement
3 of the N-propionyl group or any combination of the above.

4 (bbb) Flunitazene.

5 (ccc) Furethidine.

6 (ddd) Hydroxypethidine.

7 (eee) Isoamidone (isomethadone).

8 (fff) Isophenidine.

9 (ggg) Isotonitazene.

10 (hhh) Pethidine (meperidine).

11 (iii) Ketobemidone.

12 (jjj) ANY MATERIAL, COMPOUND, MIXTURE OR PREPARATION THAT CONTAINS
13 ANY OF THE FOLLOWING:

14 (i) AT LEAST EIGHT HUNDRED PARTS PER MILLION OF
15 7-HYDROXYMITRAGYNINE.

16 (ii) ANY QUANTITY OF SYNTHETIC 7-HYDROXYMITRAGYNINE, SYNTHETIC
17 MITRAGYNINE OR PSEUDOINDOXYL OR ANY OTHER SYNTHETICALLY DERIVED COMPOUND
18 OF THE PLANT MITRAGYNA SPECIOSA.

19 ~~(jjjj)~~ (kkk) Lefetamine.

20 ~~(kkkk)~~ (lll) Levomethorphan.

21 ~~(llll)~~ (mmm) Levomoramide.

22 ~~(mmmm)~~ (nnn) Levophenacylmorphan.

23 ~~(nnnn)~~ (ooo) Levorphanol.

24 ~~(oooo)~~ (ppp) Metazocine.

25 ~~(pppp)~~ (qqq) Methoxphenidine (MXP).

26 ~~(qqqq)~~ (rrr) 3-methylfentanyl.

27 ~~(rrrr)~~ (sss) 1-methyl-4-phenyl-4-propionoxypiperidine (MPPP).

28 ~~(ssss)~~ (ttt) 3-methylthiofentanyl.

29 ~~(tttt)~~ (uuu) Metodesnitazene.

30 ~~(uuuu)~~ (vvv) Metonitazene.

31 ~~(vvvv)~~ (www) Morpheridine.

32 ~~(wwww)~~ (xxx) Noracymethadol.

33 ~~(xxxx)~~ (yyy) Norlevorphanol.

34 ~~(yyyy)~~ (zzz) Normethadone.

35 ~~(zzzz)~~ (aaaa) Norpipanone.

36 ~~(aaaaa)~~ (bbbb) Opium.

37 ~~(bbbbb)~~ (cccc) Para-fluorofentanyl.

38 ~~(ccccc)~~ (dddd) Pentazocine.

39 ~~(ddddd)~~ (eeee) Phenadoxone.

40 ~~(eeeee)~~ (ffff) Phenampromide.

41 ~~(ffffff)~~ (gggg) Phenazocine.

42 ~~(ggggg)~~ (hhhh) 1-(2-phenethyl)-4-phenyl-4-acetoxypiperidine
43 (PEPAP).

44 ~~(hhhhh)~~ (iiii) Phenomorphan.

45 ~~(iiiii)~~ (jjjj) Phenoperidine.

46 ~~(jjjjj)~~ (kkkk) Piminodine.

47 ~~(kkkkk)~~ (llll) Piritramide.

1 ~~(TTTT)~~ (TTTT) Proheptazine.
2 ~~(MMMM)~~ (NNNN) Properidine.
3 ~~(NNNN)~~ (OOOO) Propiram.
4 ~~(OOOO)~~ (PPPP) Protonitazene.
5 ~~(PPPP)~~ (QQQQ) Racemethorphan.
6 ~~(QQQQ)~~ (RRRR) Racemoramide.
7 ~~(RRRR)~~ (SSSS) Racemorphan.
8 ~~(SSSS)~~ (TTTT) Remifentanil.
9 ~~(TTTT)~~ (UUUU) Sufentanil.
10 ~~(UUUU)~~ (VVVV) Thenylfentanyl.
11 ~~(VVVV)~~ (WWWW) Thiofentanyl.
12 ~~(WWWW)~~ (XXXX) Tilidine.
13 ~~(XXXX)~~ (YYYY) Tramadol, 2-[(dimethylamino)methyl]-1-(3-
14 methoxyphenyl) cyclohexanol, and its salts, optical and geometric isomers,
15 and its salts of isomers.
16 ~~(YYYY)~~ (ZZZZ) Trimeperidine.
17 21. "Opium" means any compound, manufacture, salt, isomer, salt of
18 isomer, derivative, mixture or preparation of the following, but does not
19 include apomorphine or any of its salts:
20 (a) Acetorphine.
21 (b) Acetyldihydrocodeine.
22 (c) Benzylmorphine.
23 (d) Codeine.
24 (e) Codeine methylbromide.
25 (f) Codeine-N-oxide.
26 (g) Cyprenorphine.
27 (h) Desomorphine.
28 (i) Dihydromorphine.
29 (j) Drotebanol.
30 (k) Ethylmorphine.
31 (l) Etorphine.
32 (m) Heroin.
33 (n) Hydrocodone.
34 (o) Hydromorphenol.
35 (p) Hydromorphone.
36 (q) Levo-alphaacetylmethadol.
37 (r) Methyl-desorphine.
38 (s) Methyl-dihydromorphine.
39 (t) Metopon.
40 (u) Morphine.
41 (v) Morphine methylbromide.
42 (w) Morphine methylsulfonate.
43 (x) Morphine-N-oxide.
44 (y) Myrophine.
45 (z) Nalorphine.
46 (aa) Nicocodeine.
47 (bb) Nicomorphine.

- 1 (cc) Normorphine.
- 2 (dd) Oxycodone.
- 3 (ee) Oxymorphone.
- 4 (ff) Pholcodine.
- 5 (gg) Thebacon.
- 6 (hh) Thebaine.
- 7 22. "Ordinary ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
- 8 phenylpropanolamine product" means a product that contains ephedrine,
- 9 pseudoephedrine, (-)-norpseudoephedrine or phenylpropanolamine and that is
- 10 all of the following:
- 11 (a) Approved for sale under the federal act.
- 12 (b) Labeled, advertised and marketed only for an indication that is
- 13 approved by the federal food and drug administration.
- 14 (c) Either:
- 15 (i) A nonliquid that is sold in package sizes of not more than
- 16 three grams of ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
- 17 phenylpropanolamine and that is packaged in blister packs containing not
- 18 more than two dosage units or, if the use of blister packs is technically
- 19 infeasible, that is packaged in unit dose packets or pouches.
- 20 (ii) A liquid that is sold in package sizes of not more than three
- 21 grams of ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
- 22 phenylpropanolamine.
- 23 23. "Peyote" means any part of a plant of the genus *lophophora*,
- 24 known as the mescal button.
- 25 24. "Pharmacy" means a licensed business where drugs are compounded
- 26 or dispensed by a licensed pharmacist.
- 27 25. "Practitioner" means a person licensed to prescribe and
- 28 administer drugs.
- 29 26. "Precursor chemical I" means any material, compound, mixture or
- 30 preparation which contains any quantity of the following substances and
- 31 their salts, optical isomers or salts of optical isomers:
- 32 (a) N-acetylanthranilic acid.
- 33 (b) Anthranilic acid.
- 34 (c) Ephedrine.
- 35 (d) Ergotamine.
- 36 (e) Isosafrole.
- 37 (f) Lysergic acid.
- 38 (g) Methylamine.
- 39 (h) N-ethylephedrine.
- 40 (i) N-ethylpseudoephedrine.
- 41 (j) N-methylephedrine.
- 42 (k) N-methylpseudoephedrine.
- 43 (l) Norephedrine.
- 44 (m) (-)-Norpseudoephedrine.
- 45 (n) Phenylacetic acid.
- 46 (o) Phenylpropanolamine.
- 47 (p) Piperidine.

1 (q) Pseudoephedrine.

2 27. "Precursor chemical II" means any material, compound, mixture
3 or preparation which contains any quantity of the following substances and
4 their salts, optical isomers or salts of optical isomers:

5 (a) 4-cyano-2-dimethylamino-4, 4-diphenyl butane.

6 (b) 4-cyano-1-methyl-4-phenylpiperidine.

7 (c) Chlorophedrine.

8 (d) Chlorpseudoephedrine.

9 (e) Ethyl-4-phenylpiperidine-4-carboxylate.

10 (f) 2-methyl-3-morpholino-1, 1-diphenylpropane-carboxylic acid.

11 (g) 1-methyl-4-phenylpiperidine-4-carboxylic acid.

12 (h) N-formyl amphetamine.

13 (i) N-formyl methamphetamine.

14 (j) Phenyl-2-propanone.

15 (k) 1-piperidinocyclohexane carbonitrile.

16 (l) 1-pyrrolidinocyclohexane carbonitrile.

17 28. "Prescription-only drug" does not include a dangerous drug or
18 narcotic drug but means:

19 (a) Any drug which because of its toxicity or other potentiality
20 for harmful effect, or the method of its use, or the collateral measures
21 necessary to its use, is not generally recognized among experts, qualified
22 by scientific training and experience to evaluate its safety and efficacy,
23 as safe for use except by or under the supervision of a medical
24 practitioner.

25 (b) Any drug that is limited by an approved new drug application
26 under the federal act or section 32-1962 to use under the supervision of a
27 medical practitioner.

28 (c) Every potentially harmful drug, the labeling of which does not
29 bear or contain full and adequate directions for use by the consumer.

30 (d) Any drug required by the federal act to bear on its label the
31 legend "Caution: Federal law prohibits dispensing without prescription"
32 or "Rx only".

33 29. "Produce" means grow, plant, cultivate, harvest, dry, process
34 or prepare for sale.

35 30. "Regulated chemical" means the following substances in bulk
36 form that are not a useful part of an otherwise lawful product:

37 (a) Acetic anhydride.

38 (b) Hypophosphorous acid.

39 (c) Iodine.

40 (d) Sodium acetate.

41 (e) Red phosphorus.

42 (f) Gamma butyrolactone (GBL).

43 (g) 1, 4-butanediol.

44 (h) Butyrolactone.

45 (i) 1, 2 butanolide.

46 (j) 2-oxanalone.

47 (k) Tetrahydro-2-furanone.

- 1 (1) Dihydro-2(3H)-furanone.
2 (m) Tetramethylene glycol.
3 31. "Retailer" means either:
4 (a) A person other than a practitioner who sells any precursor
5 chemical or regulated chemical to another person for purposes of
6 consumption and not resale, whether or not the person possesses a permit
7 issued pursuant to title 32, chapter 18.
8 (b) A person other than a manufacturer or wholesaler who purchases,
9 receives or acquires more than twenty-four grams of a precursor chemical.
10 32. "Sale" or "sell" means an exchange for anything of value or
11 advantage, present or prospective.
12 33. "Sale for personal use" means the retail sale for a legitimate
13 medical use in a single transaction to an individual customer, to an
14 employer for dispensing to employees from first aid kits or medicine
15 chests or to a school for administration pursuant to section 15-344.
16 34. "Scientific purpose" means research, teaching or chemical
17 analysis.
18 35. "Suspicious transaction" means a transaction to which any of
19 the following applies:
20 (a) A report is required under the federal act.
21 (b) The circumstances would lead a reasonable person to believe
22 that any person is attempting to possess a precursor chemical or regulated
23 chemical for the purpose of unlawful manufacture of a dangerous drug or
24 narcotic drug, based on such factors as the amount involved, the method of
25 payment, the method of delivery and any past dealings with any
26 participant.
27 (c) The transaction involves payment for precursor or regulated
28 chemicals in cash or money orders in a total amount of more than \$200.
29 (d) The transaction involves a sale, a transfer or furnishing to a
30 retailer for resale without a prescription of ephedrine, pseudoephedrine,
31 (-)-norpseudoephedrine or phenylpropanolamine that is not an ordinary
32 ephedrine, pseudoephedrine, (-)-norpseudoephedrine or phenylpropanolamine
33 product.
34 36. "Threshold amount" means a weight, market value or other form
35 of measurement of an unlawful substance as follows:
36 (a) One gram of heroin.
37 (b) Nine grams of cocaine, including hydrolyzed cocaine.
38 (c) Four grams or 50 milliliters of PCP.
39 (d) Nine grams of methamphetamine, including methamphetamine in
40 liquid suspension.
41 (e) Nine grams of amphetamine, including amphetamine in liquid
42 suspension.
43 (f) One-half milliliter of lysergic acid diethylamide, or in the
44 case of blotter dosage units fifty dosage units.
45 (g) Two pounds of marijuana.
46 (h) Nine grams of fentanyl or fentanyl mimetic substances.

1 (i) For any combination consisting solely of those unlawful
2 substances listed in subdivisions (a) through (h) of this paragraph, an
3 amount equal to or in excess of the threshold amount, as determined by the
4 application of section 13-3420.

5 (j) For any unlawful substance not listed in subdivisions (a)
6 through (h) of this paragraph or any combination involving any unlawful
7 substance not listed in subdivisions (a) through (h) of this paragraph, a
8 value of at least \$1,000.

9 37. "Transfer" means furnish, deliver or give away.

10 38. "Vapor-releasing substance containing a toxic substance" means
11 a material which releases vapors or fumes containing any of the following:

12 (a) Ketones, including acetone, methyl ethyl ketone, mibk, miak,
13 isophorone and mesityl oxide.

14 (b) Hydrocarbons, including propane, butane, pentane, hexane,
15 heptane and halogenated hydrocarbons.

16 (c) Ethylene dichloride.

17 (d) Pentachlorophenol.

18 (e) Chloroform.

19 (f) Methylene chloride.

20 (g) Trichloroethylene.

21 (h) Difluoroethane.

22 (i) Tetrafluoroethane.

23 (j) Aldehydes, including formaldehyde.

24 (k) Acetates, including ethyl acetate and butyl acetate.

25 (l) Aromatics, including benzene, toluene, xylene, ethylbenzene and
26 cumene.

27 (m) Alcohols, including methyl alcohol, ethyl alcohol, isopropyl
28 alcohol, butyl alcohol and diacetone alcohol.

29 (n) Ether, including Diethyl ether and petroleum ether.

30 (o) Nitrous oxide.

31 (p) Amyl nitrite.

32 (q) Isobutyl nitrite.

33 39. "Weight" unless otherwise specified includes the entire weight
34 of any mixture or substance that contains a detectable amount of an
35 unlawful substance. If a mixture or substance contains more than one
36 unlawful substance, the weight of the entire mixture or substance is
37 assigned to the unlawful substance that results in the greater offense.
38 If a mixture or substance contains lysergic acid diethylamide, the offense
39 that results from the unlawful substance shall be based on the greater
40 offense as determined by the entire weight of the mixture or substance or
41 the number of blotter dosage units. For the purposes of this paragraph,
42 "mixture" means any combination of substances from which the unlawful
43 substance cannot be removed without a chemical process.

44 40. "Wholesaler" means a person who in the usual course of business
45 lawfully supplies narcotic drugs, dangerous drugs, precursor chemicals or
46 regulated chemicals that he himself has not produced or prepared, but not
47 to a person for the purpose of consumption by the person, whether or not

1 the wholesaler has a permit that is issued pursuant to title 32,
2 chapter 18. Wholesaler includes a person who sells, delivers or dispenses
3 a precursor chemical in an amount or under circumstances that would
4 require registration as a distributor of precursor chemicals under the
5 federal act.

6 Sec. 2. Section 36-795, Arizona Revised Statutes, is amended to
7 read:

8 36-795. Definitions

9 In this article, unless the context otherwise requires:

10 ~~1. "Food" means a food as defined in section 36-901, food product,~~
11 ~~food ingredient, dietary ingredient, dietary supplement or beverage for~~
12 ~~human consumption.~~

13 1. "KRATOM" MEANS THE PLANT OR ANY PART OF THE PLANT MITRAGYNA
14 SPECIOSA.

15 2. "Kratom product" means ~~a food~~ ANY product ~~or dietary ingredient~~
16 ~~containing any part of the leaf of the plant mitragyna speciosa~~ THAT IS
17 MADE FROM KRATOM AND THAT IS MADE TO BE INGESTIBLE OR INHALABLE.

18 ~~3. "Processor" means a person that sells, prepares, manufactures,~~
19 ~~distributes, wholesales or maintains kratom products or that advertises,~~
20 ~~represents or holds itself out as selling, preparing or maintaining kratom~~
21 ~~products.~~

22 ~~4. "Retailer" means a person that sells or distributes kratom~~
23 ~~products or that advertises, represents or holds itself out as selling or~~
24 ~~maintaining kratom products.~~

25 Sec. 3. Repeal

26 Section 36-795.01, Arizona Revised Statutes, is repealed.

27 Sec. 4. Title 36, chapter 6, article 10, Arizona Revised Statutes,
28 is amended by adding a new section 36-795.01, to read:

29 36-795.01. Kratom products; labeling required

30 ANY KRATOM PRODUCT THAT IS OFFERED FOR SALE OR SOLD IN THIS STATE
31 MUST INCLUDE A LABEL OR CONSUMER SCANNABLE QUICK RESPONSE CODE OR SIMILAR
32 TECHNOLOGY THAT PROVIDES ALL OF THE FOLLOWING:

33 1. THE INGREDIENTS OF THE KRATOM PRODUCT.

34 2. THE QUANTITY OF MITRAGYNINE OR 7-HYDROXYMITRAGYNINE IN THE
35 KRATOM PRODUCT.

36 3. THE ~~[RECOMMEND SERVICING]~~ [RECOMMENDED SERVING] SIZE OF THE
37 KRATOM PRODUCT.

38 4. THE NUMBER OF SERVINGS IN THE KRATOM PRODUCT.

39 Sec. 5. Section 36-795.02, Arizona Revised Statutes, is amended to
40 read:

41 36-795.02. Prohibited manufacture, distribution and sales;
42 minimum age; location

43 ~~A. A processor or retailer may not prepare, distribute, sell or~~
44 ~~expose for sale any of the following:~~

45 ~~1. A kratom product that is adulterated with a dangerous nonkratom~~
46 ~~substance. A kratom product is adulterated with a dangerous nonkratom~~
47 ~~substance if the kratom product is mixed or packed with a nonkratom~~

1 ~~substance and that substance affects the quality or strength of the kratom~~
2 ~~product to such a degree as to render the kratom product injurious to a~~
3 ~~consumer.~~

4 ~~2. A kratom product that is contaminated with a dangerous nonkratom~~
5 ~~substance. A kratom product is contaminated with a dangerous nonkratom~~
6 ~~substance if the kratom product contains a poisonous or otherwise~~
7 ~~deleterious nonkratom substance, including any controlled substance~~
8 ~~prescribed by chapter 27 of this title or rules adopted pursuant to~~
9 ~~chapter 27 of this title.~~

10 ~~3. A kratom product containing a level of 7-hydroxymitragynine in~~
11 ~~the alkaloid fraction that is greater than two percent of the alkaloid~~
12 ~~composition of the product.~~

13 ~~4. A kratom product containing any synthetic alkaloid, including~~
14 ~~synthetic mitragynine, synthetic 7-hydroxymitragynine or any other~~
15 ~~synthetically derived compounds of the kratom plant.~~

16 ~~5. Any kratom-containing product that does not include on its~~
17 ~~package or label the amount of mitragynine and 7-hydroxymitragynine~~
18 ~~contained in the product.~~

19 ~~B. [A.] A processor or retailer PERSON may not PREPARE,~~
20 ~~MANUFACTURE, distribute, TRANSPORT, OFFER FOR SALE OR sell or expose for~~
21 ~~sale a kratom product to an individual who is under eighteen TWENTY-ONE~~
22 ~~years of age.~~

23 ~~[B. A RETAILER MAY NOT SELL ANY KRATOM PRODUCT WITHIN FIVE HUNDRED~~
24 ~~FEET OF A PUBLIC OR PRIVATE SCHOOL, A CHILD CARE FACILITY OR A FACILITY~~
25 ~~THAT PROVIDES PRESCHOOL PROGRAMS.]~~

26 Sec. 6. Section 36-795.03, Arizona Revised Statutes, is amended to
27 read:

28 36-795.03. Enforcement; violations; classification

29 ~~A. In addition to the violations and remedies specified in this~~
30 ~~section, violations and enforcement of this article are governed by~~
31 ~~chapter 8 of this title.~~

32 ~~B. A. A processor or retailer that PERSON WHO violates section~~
33 ~~36-795.01, subsection B or section 36-795.02 is guilty of a class 2~~
34 ~~misdemeanor.~~

35 ~~B. A PERSON WHO VIOLATES SECTION 36-795.02 IS GUILTY OF A CLASS 1~~
36 ~~MISDEMEANOR.~~

37 ~~C. A PERSON WHO COMMITS A SECOND OR SUBSEQUENT VIOLATION OF SECTION~~
38 ~~36-795.02 WITHIN TWENTY-FOUR MONTHS IS GUILTY OF A CLASS 6 FELONY.~~

39 ~~C. D. In addition to and distinct from any other remedy at law or~~
40 ~~equity, a person WHO IS aggrieved by a violation of section~~
41 ~~36-795.01, subsection B or section 36-795.02, subsection A may bring a~~
42 ~~private cause of action in a court of competent jurisdiction for damages~~
43 ~~resulting from that violation, including economic, noneconomic or~~
44 ~~consequential damages.~~

45 ~~D. A processor or retailer does not violate section 36-795.01,~~
46 ~~subsection B or section 36-795.02, subsection A if the court finds by a~~
47 ~~preponderance of the evidence that the processor or retailer relied in~~

1 ~~good faith on the representation of a manufacturer, packer or distributor~~
2 ~~that the food was a kratom product.~~

3 Sec. 7. Title 36, chapter 6, article 10, Arizona Revised Statutes,
4 is amended by adding section 36-795.04, to read:

5 36-795.04. Kratom products; storage; packaging; advertising;
6 warning; enforcement

7 [A. A RETAILER SHALL KEEP ALL KRATOM PRODUCTS BEHIND THE SALES
8 COUNTER.]

9 [A.] [B.] A [PERSON WHO] [PROCESSOR OR RETAILER THAT] SELLS KRATOM
10 PRODUCTS MAY NOT:

11 1. PACKAGE OR LABEL ANY KRATOM PRODUCT IN A FALSE OR MISLEADING
12 MANNER.

13 2. ADVERTISE KRATOM OR KRATOM PRODUCTS, INCLUDING KRATOM
14 PARAPHERNALIA, TO INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF AGE,
15 INCLUDING ADVERTISING:

16 (a) WITH NAMES THAT RESEMBLE OR IMITATE FOOD OR DRINK BRANDS THAT
17 ARE MARKETED TO CHILDREN.

18 (b) WITH IMAGES OR LIKENESSES OF TOYS, CARTOONS OR ANIMATED OR
19 FICTIONAL CHARACTERS, INCLUDING SANTA CLAUS, THAT ARE DESIGNED TO APPEAL
20 TO OR ENCOURAGE INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF AGE TO
21 CONSUME KRATOM OR KRATOM PRODUCTS.

22 [(c) WITH IMAGES OR VISUAL REPRESENTATIONS OF THE CONSUMPTION OF
23 KRATOM OR KRATOM PRODUCTS.]

24 [(c)] [(d)] IN A MEDIUM THAT SPECIFICALLY APPEALS TO INDIVIDUALS
25 WHO ARE UNDER TWENTY-ONE YEARS OF AGE SUCH THAT THE ADVERTISING HAS A
26 SPECIAL ATTRACTIVENESS TO INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF
27 AGE BEYOND GENERAL ATTRACTIVENESS FOR INDIVIDUALS WHO ARE AT LEAST
28 TWENTY-ONE YEARS OF AGE.

29 [3. ADVERTISE AT, ON OR WITHIN PUBLIC AIRPORTS, PUBLIC
30 TRANSPORTATION SHELTERS, PUBLIC BUSES, PUBLIC TRAINS, PUBLIC SHUTTLES OR
31 PUBLIC TRAMS.]

32 [3.] [4.] ADVERTISE ANY HEALTH-RELATED STATEMENT OR STATEMENT
33 REGARDING THE EFFECTS OF KRATOM CONSUMPTION ON HEALTH THAT IS KNOWN TO BE
34 UNTRUE. [ANY ADVERTISING UNDER THIS ARTICLE INVOLVING DIRECT,
35 INDIVIDUALIZED COMMUNICATION OR DIALOGUE SHALL USE A METHOD OF AGE
36 AFFIRMATION TO VERIFY THAT THE RECIPIENT IS AT LEAST TWENTY-ONE YEARS OF
37 AGE BEFORE ENGAGING IN THE COMMUNICATION OR DIALOGUE. FOR THE PURPOSES OF
38 THIS SUBSECTION, THE METHOD OF AGE AFFIRMATION MAY INCLUDE USER
39 CONFIRMATION, BIRTH DATE DISCLOSURE OR OTHER SIMILAR REGISTRATION
40 METHODS.]

41 [5. ADVERTISE ELECTRONICALLY, VIA SOCIAL MEDIA OR ON A WEBSITE,
42 UNLESS AT LEAST 73.6 PERCENT OF THE AUDIENCE IS EXPECTED TO BE AT LEAST
43 TWENTY-ONE YEARS OF AGE.]

44 6. SPONSOR ANY SPORTING EVENT UNLESS AT LEAST 73.6 PERCENT OF THE
45 AUDIENCE IS EXPECTED TO BE AT LEAST TWENTY-ONE YEARS OF AGE OR THE
46 SPONSORED ORGANIZATION PROVIDES WRITTEN APPROVAL. ANY SPONSORSHIP

1 ACKNOWLEDGEMENT SHALL BE IN ACCORDANCE WITH RESTRICTIONS IMPOSED BY THIS
2 SECTION.

3 C. ALL ADVERTISING PURSUANT TO THIS SECTION MUST CONTAIN THE
4 FOLLOWING CONSPICUOUS AND LEGIBLE WARNING: "DO NOT USE KRATOM IF YOU ARE
5 UNDER TWENTY-ONE YEARS OF AGE OR PREGNANT. KEEP KRATOM OUT OF REACH OF
6 CHILDREN." ALL PRINTED WARNINGS MUST OCCUPY AT LEAST TEN PERCENT OF THE
7 ADVERTISING AREA AND MUST BE IN BLACK FONT ON A WHITE BACKGROUND, EXCEPT
8 THAT BILLBOARD ADVERTISEMENT WARNINGS SHALL BE IN A TYPE SIZE THAT IS AT
9 LEAST TEN PERCENT OF THE LARGEST TYPE USED IN THE ADVERTISEMENT.

10 D. A BILLBOARD ADVERTISEMENT UNDER THIS SECTION IS PROHIBITED
11 WITHIN ONE THOUSAND RADIAL FEET OF ANY CHILD CARE CENTER, CHURCH,
12 SUBSTANCE ABUSE RECOVERY FACILITY, PUBLIC PARK, PUBLIC PLAYGROUND OR
13 PUBLIC OR PRIVATE SCHOOL THAT PROVIDES INSTRUCTION TO STUDENTS IN
14 PRESCHOOL OR KINDERGARTEN PROGRAMS OR ANY OF GRADES ONE THROUGH TWELVE.
15 AN INDIVIDUAL OR ENTITY THAT VIOLATES THIS SUBSECTION, ON NOTIFICATION BY
16 THE ATTORNEY GENERAL'S OFFICE, HAS THIRTY DAYS TO COMPLY WITH THE
17 REQUIREMENTS OF THIS SUBSECTION. FOR CIRCUMSTANCES BEYOND THE CONTROL OF
18 THE BILLBOARD OPERATOR THAT MAY PREVENT REMOVAL WITHIN THE PRESCRIBED TIME
19 FRAME, THE ADVERTISEMENT MUST BE REMOVED AS SOON AS SAFELY AND LEGALLY
20 PRACTICABLE. AN INDIVIDUAL OR ENTITY THAT DOES NOT COMPLY WITH THIS
21 SUBSECTION IS SUBJECT TO THE CIVIL PENALTIES AND DISCIPLINARY ACTION
22 PRESCRIBED IN THIS SECTION.

23 E. AN ADVERTISING PLATFORM MAY HOST ADVERTISING ONLY IF THE
24 ADVERTISING ACCURATELY AND LEGIBLY IDENTIFIES THE ENTITY RESPONSIBLE FOR
25 THE CONTENT OF THE ADVERTISING AND THE ADVERTISING CONTAINS A PRINTED
26 WARNING THAT COMPLIES WITH SUBSECTION C OF THIS SECTION.

27 F. ANY ADVERTISING UNDER THIS ARTICLE INVOLVING DIRECT,
28 INDIVIDUALIZED COMMUNICATION OR DIALOGUE SHALL USE A METHOD OF AGE
29 AFFIRMATION TO VERIFY THAT THE RECIPIENT IS AT LEAST TWENTY-ONE YEARS OF
30 AGE BEFORE ENGAGING IN THAT COMMUNICATION OR DIALOGUE. FOR THE PURPOSES
31 OF THIS SUBSECTION, THAT METHOD OF AGE AFFIRMATION MAY INCLUDE USER
32 CONFIRMATION, BIRTH DATE DISCLOSURE OR OTHER SIMILAR REGISTRATION
33 METHODS.]

34 ~~[B.]~~ [G.] AN INDIVIDUAL OR ENTITY THAT VIOLATES THIS SECTION, ON
35 NOTIFICATION BY THE DEPARTMENT OR THE ATTORNEY GENERAL'S OFFICE, HAS
36 FOURTEEN DAYS TO COMPLY WITH THE REQUIREMENTS OF THIS SECTION.

37 ~~[C.]~~ [H.] THIS SECTION SHALL BE ENFORCED BY THE ATTORNEY GENERAL.

38 <<Sec. 8. Conditional repeal; notice

39 [A. Title 36, chapter 6, article 10, Arizona Revised Statutes, is
40 repealed if, on or before January 1, 2037, the United States food and drug
41 administration or the United States drug enforcement administration
42 schedules kratom, mitragynine or any substance that is derived from the
43 mitragyna speciosa plant as a controlled substance.

44 B. On or before March 1, 2037, the executive director of the
45 Arizona state board of pharmacy shall notify the director of the Arizona
46 legislative council in writing either:

47 1. Of the date on which the condition was met.

Senate Amendments to H.B. 2415

| 1 2. That the condition was not met.]]>>

2 Enroll and engross to conform

3 Amend title to conform

SHAWNNA BOLICK

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